

Assam Home Guards Rules, 1947

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State of Assam - Act

Assam Home Guards Rules, 1947

ASSAM

India

Assam Home Guards Rules, 1947

Rule ASSAM-HOME-GUARDS-RULES-1947 of 1947

Published on 27 September 1948

Commenced on 27 September 1948

[This is the version of this document from 27 September 1948.]

[Note: The original publication document is not available and this content could not be verified.]

Assam Home Guards Rules, 1947

Published vide notification No. Ex./Misc./78/47/12-Ad, dated the 27.9.1948

Last Updated 13th February, 2020

No. Ex./Misc./78/47/ 13/-Ad. - In exercise of the powers conferred by sub-section 3 (1) of Section 1 of the Assam Home Guards Act, 1947 (Assam Act XXIV of 1947), the Governor of Assam is pleased to appoint the 2nd October, 1948, as the date on which the said Act shall come into force in the area the boundaries of which have been described in Schedule 1 to Notification No. EX.Misc.78/47/12-Ad, Dated the 27th September, 1948.

1.

Short Title.

- These rules maybe cited as the Assam Home Guards Rules, 1947.

2.

In theses rules: -

(i)

"Act" means the Assam Home Guards Act, 1947 (Act XXIV of 1947).

(ii)

"Standing Orders" mean the general orders issued as such by the Commandant General in respect of any matters in which he is authorised by the Act or the rules to make such orders.

(iii)

"Area" means a Subdivision or a part of a District for the purpose of the Act and Rules.

3.

The Home Guards shall Organised in sections consisting of a Section Commander and nine guards each. Two or more sections but not more than four may be united as a platoon under the command of a platoon commander, and two or more platoons but not more than four as a company under a company Commander of an Area Commandant.

The guards may be known as Desh-Rakshi-Sena Section Commander as Nayak, Platoon Commander as Jatthedars, Company Commanders as Subedars and Area Commandants as Jila -Adhinayak.

The Commandant General may be known as Dalpati or S arbadhinay ak.

4.

A person shall be eligible for appointment as a guard if he: -

(a)

is not less than 20 and not more than 55 years of age;

(b)

is not less than 5 feet 2 inches in height an has chest measurement (Unexpanded) not less than 31 inches;

(c)

can read and write in his own Vernacular;

(d)

is of good character;

(e)

is not engaged in any course of study in an educational institution; and

(f)

takes and oath of allegiance to the Government of Assam as laid down in Appendix "Form of affirmation".

5.

An applicant for appointment shall apply to the Commandant of the guards in his Area of residence in form A annexed, with two certificates of good character from responsible persons and a certificate of his physical fitness from a registered medical practitioner. Every such application shall be scrutinised by the Area Commandant. Every person, whose appointment is approved by the Commandant General within the strength sanction in the standing Orders, shall be granted a certificate in the form annexed to the Act.

N.B. - Notified Vide Home Department Notification No.HPL.345, Dated 2nd February, 1948.

6.

Appointments to the rank of the Area Commandant shall be made by the Commandant General subject to the approval of the Provincial Government. All officers and ranks below the rank of an Area Commandant shall be appointed by the area Commandant subject to the approval of the Commandant General.

7.

During his period of training which shall not exceed 2 months, and when called out on duty, every officer of Home Guard whether on the active or reserve establishments, shall receive pay or honorarium at the rate appropriate to his rank, as fixed from time to time by the Provincial Government. He shall also be entitled to receive free board at a cost not exceeding a maximum limit fixed by standing orders under the Act, or free rations, or a cash allowance in lieu, on the scale laid down for Government servants from time to time.

He shall receive also serviceable uniform and a set of equipment as may be prescribed in Standing Orders.

The rates of pay or honorarium while on action list unfiltered by order of provincial Government shall be

Rs.

Home guard-----

28 per mensem

Nayak-----

32

Jatedar-----

45

Subedars-----

50 " "

Jila Adhinayak-----

100 " "

Provided that any officer or Guard who desires to serve in an honorary capacity may disclose his intention in writing to the address of his Commandant, and in that case shall not draw any pay.

8.

The Home Guards, or any part thereof may be called out on duty by an Order in the form appended, signed by the District Magistrate or sub-divisional officer when in his opinion their assistance is necessary for the prevention of commission of offences, for protection of life and property, for the maintenance of services and supplies essential for the life of the community, for the suppression of disturbances for the control and regulation of traffic and assemblies, for the collection of information, or generally for the assistance of the police in the discharge of their duties.

Provided that any Home Guard officer of rank not lower than Subedar emergency and if there is insufficient time to obtain the order of the District Magistrate or Sub- divisional Officer.

(a)

The District Magistrate or the Sub divisional Officer as the case may be, will issue a command certificate to the Subedar for himself and others under him, in the following form while deputing them to a particular area of the district or subdivision : -

Command Certificate To Be Carried By Home Guards On Duty

Whereas the Home Guards of..... area have been called out under section 10 of the Assam Home Guards Act, 1947, I, therefore depute the following Home Guards for the performance of the duties in the Area/Locality shown hereunder.

All concerned are hereby ordered to render them such assistance and co-operation as is due under the law to public servants on duty.

This certificate will remain in force upto (i)

Name of Home Guard

Locality/Area where deputed

Description of duty

Remarks

Deputy Commissioner.Sub divisional officer.

(1)

This will conform with the period for which the Home Guards have been called to duty.

9.

The uniform and equipment of Home Guards shall be such as may be laid down in the Standing Order.

Uniform and equipment may be worn on duty only. These remain Government property; they will be renewed when worn out through fair wear and tear, and will be returned when the guard quits the service. The cost of any article found deficient or damaged or worn out through unfair use shall be recovered from the guard concerned.

10.

The following shall be deemed to be offences against the force -

(a)

disobedience of orders;

(b)

failure to appear when called upon to parade or for duty at the proper time;

(c)

use of violence to any member of the force;

(d)

misuse of any property.

11.

The following punishments may be inflicted for any offence against the force -

(a)

reprimand;

(b)

extra duty;

(c)

deprivation of remuneration;

(d)

suspension;

(e)

reduction of rank;

(f)

dismissal.

Any of the said punishments may be inflicted by the Commandant of Area subject to the procedure laid down for disciplinary proceedings against a member of a subordinate service of Government, provided that an appeal against dismissal shall be to the Commandant General. Any Officer of the Home Guard of or above the rank of Platoon Commander may suspend a Home Guard under his command pending the framing of a charge.

12.

A discharge certificate shall be in form B.

Before discharge a Home Guard shall deliver up in good condition his enrolment certificate and all articles of uniform, equipment, arms, accoutrements and other Home Guards property in his charge.

13.

Manner of exercising superintendence: -

The superintendence of Home Guards throughout Assam vested in the Provincial Government under sub-section (2) of section 4 of the Act shall be exercised by it through the Inspector General of Police and in the following manner -

(a)

the Inspector General of Police shall periodically inspect the Home Guards and submit a report of his inspection to the Provincial Government,

(b)

all standing orders shall be made by the Commandant General with the previous approval of the Provincial Government,

(c)

in such other manner as the Provincial Government may, by general or special order, require.

Standing Orders

1.

(1)

Organization. - The nomenclature of the ranks of the Home Guards is-

(a)

Officers - Dalapati, Jila Adhinayak, Subedar.

(b)

Other ranks - Jatthedars, Nayak, Des Rakshi Sainik.

(2)

The Home Guards force shall be divided into units and commanded as follows -

(a)

A section consisting of a Section Commander and nine men in his charge;

(b)

a platoon consisting of two sections or more, but not more than four sections in charge of a Platoon Commander;

(c)

a company consisting of two platoons or more, but not more than four platoons in charge of a Company Commander;

(d)

a battalion consisting of two companies or more ***** charge of an Area Commandant.

Shorts

grey.....

1 Pair

Trousers

grey.....

1 "

Forage

cap.....

2 "

Putties, short khaki

woolen.....

1 "

Boots, ammunition

black.....

1 "

Belt, leather-black with brass

buckle.....

1 "

Socks grey

woolen.....

1 "

Hose top woolen

khaki.....

1 "

Lanyard whistle

khaki.....

1 "

The following additional items may be issued when on duty in inclement weather, when available: -

Great Coat

Grey.....

1

Water-Proof.....

1

Vest woolen

grey.....

1

2. The following pips and badges shall be worn by the officers and other ranks: -

(a)

on shoulders -

(i)

Commandant General Two Wheels (as in the National Flag) in the middle, and cross National Flags,

(ii)

Area Commandant - Two Wheels,

(iii)

Subedar or Company Commander - One Wheel.

Other ranks -

Jatthedars - Three white stripes on saffron coloured shoulder straps.

Nayaks - Two white stripes on saffron coloured shoulder straps.

N.B. - All officers and men of the Home Guards force shall wear shoulder bronze badges engraved as Desh Rakshi, Bahini, Assam. All officers will be to wear some brown belts and Peak Caps in place of the Caps and belts provided for

Home Guards, which will usually be worn by them.

Training

3.

(1)

Every Home Guard other than an officer shall, after his enrolment subject to an within the limits of training facilities undergo a course of training for a period of not more than two months in -

(a)

Foot drill,

(b)

Arms drill,

(c)

Weapons training,

(d)

map reading,

(e)

Field craft

(f)

musketry course as for officers and men of the Army,

(g)

legal power of Home Guards,

(h)

Fire-fighting,

(i)

first-aid.

(2)

The syllabus of the aforesaid course of training shall be laid down by a committee consisting of the Commandant General, Inspector General of Police and a non-official member to be nominated by the Provincial Government.

(3)

Every Home Guards undergoing the course of training shall receive free board the cost not exceeding Rs.2 per day and lodging and an honorarium according to the scale to be laid down by the Commandant General under rule 7 which shall have to be approved.

4. The maintenance of discipline, time of regulating drills and the parades and the movement of officers and men of the Home Guard shall be within the competence of the Commandant General in his discretion.

5. Every Subdivision shall normally be expected to raise a corps of 216 Home-Guard and 33 officers immediately as follows: -

(24 Nayaks, 6 Jattthedars, 2 Subedars, 1 Adhinayak or Area Commandant.)

6. The Area shall raise a corps as per schedule annexed, of the present.

H.G

N.

J.

S.

A.C.

Dhubri

216

+

24

+

6

+

2

+

1
=
249
Tura
144
+
16
+
4
+
2
+
1
=
167
Karimganj
144
+
16
+
4
+
2
+
1
=
167
Silchar
}
=
288
+
32
+
8
+
4
+
2
=
334
Hailakandi
Dibrugarh
108
+
12
+
3
+
2
+

1
=
126
Jorhat
108
+
12
+
3
+
2
+
1
=
126
Golaghat
108
+
12
+
3
+
2
+
1
=
126
Now gong
108
+
12
+
3
+
2
+
1
=
126
Guwahati
108
+
12
+
3
+
2
+
1
=
126

Barpeta

108

+

12

+

3

+

2

+

1

=

126

Mangaldoi

108

+

12

+

3

+

2

+

1

=

126

Tezpur

108

+

12

+

3

+

2

+

1

=

126

Shillong

108

+

12

+

3

+

1

+

1

=

126

Goalpara

108

+

12

+

3

+

2

+

1

=

126

N. Lakhimpur

108

+

12

+

3

+

2

+

1

=

126

Sadiya

72

+

8

+

2

+

1

=

8

Under A.C. (Dibrugarh)

2160

+

240

+

60

+

34

+

17

=

2511

N.B. - The additions and Amendments' made under the following orders have been incorporated in the above Rules.

(1)

No. HPL. 255/49/16, dated 22nd December, 1949.

(2)

No. HPL. 180/50/(Part)/8, dated 7th June 1950.

(3)

No. HPL. 345/47, dated 30th November 1948.

(4)

No. HPL. 345/47, dated 13th December 1948.

(5)

No. HPL. 183/48/7, dated 19th November 1948.

(6)

No. HPL. 183/48/2, dated 21st June 1948.

(7)

No. HPL. 92/48/7, dated 13th May 1948.

FORM A*

(See Rule 5)

Home Guards Enrolment Form

(Note. - Names should be) hand-printed.

Questions to be put before enrolment

Answers

1.

What is your name?

1.

2.

What is your father's name and address?

2.

3.

Are you an Indian Subject?

3.

4.

What is your Village, Thana and District?

4.

5.

What is your Post Office?

5.

6.

What is your Railway Station?

6.

7.

What is your present trade, profession or occupation?

7.

8.

What is your religion, caste and tribe?

8.

9.

Where are you employed?

9.

10.

What are your educational qualifications?

10.

11.

What is your age?

11.

12.

Have you ever been convicted by a criminal court, and if so. In what circumstances and what was the sentence?

12.

13.

Do you now belong to the Indian or Pakistan army
the Reserve or the Indian States Forces or the Nepal State Army
or the Police Force?

13.

14.

Have you ever served in the Indian or Pakistan
army the Reserve, the Indian Defence Force or the Indian State
Force or the Nepal State army? If so state in which the period of
service and the cause of discharge?

14.

15.

Are you willing to be enrolled under the Assam
Home Guards Act, 1947?

15.

16.

Are you willing to undergo training and to
perform service as specified in the Act and to allow no caste
usages to interfere with your duty?

16.

Note - Non - interference with caste usages will
be observed exactly as in the case of the Regular Army.

17.

Are you willing to serve until discharge as
provided in the Act?

17.

*Substituted by Home Department notification No. HPL. 345/47

18.

Have you ever previously applied for enrolment
under the Act, and if so, with what result.

18.

19.

Have you been dismissed from the armed Forces
or the Police?

19.

20.

Are you willing to be vaccinated or re-vaccinated?

20.

Signature of applicant.....Signed in the presence of.....Commandant.....

Note. : - All entries above this line to be
completed on application to enroll vide rule 5.

Declaration on acceptance for enrolment

I solemnly declare that the answers I have given to the questions in this form are true and that no part of them is false,
and that I am willing to fulfill the engagement made.

Signature.....

Certified that the applicant understands and agrees to the conditions of enrolment.

Signature of enrolling officerDate of enrolment.....

Form of Affirmation

I.....solemnly affirm that I will be faithful and bear true allegiance to the Government of Assam and that I will as
in duty bound honestly and faithfully serve in the Home Guards and go wherever I may be ordered and I will observe all
lawful commands of any officer set over me even to the peril of my life.

.....

Duly affirmed before me.

Signature of Attesting officer

Dated.....19

Designation.....

Medical Certificate

Feet

Inches

Height

.....

.....

Chest, normal.....

.....

.....

Chest, expanded

.....

.....

Identification marks

.....

.....

I consider this man fit / unfit for service in

the H.Gs.

Signature of Medical

officer.....

Place.....

Date.....

Designation.....

Form B*

(See rule 12)

Discharge Certificate

This is to certify that No..... Rank..... Name.....was enrolled in the... 19, and was discharged on..... He is discharged by order of..... in consequence of. under rule 12 of the rules framed under the Assam Home Guards Act, 1947.

Character.....

Periods of training attended.....

Particulars of embodied service, if any

Father's name.....Village.....

Post Office.....Thana.....District

Address.....

Verified or not.....

Station.....

Date 19.....

(Commandant General)

[FORM C]

[Substituted by Home Department notification No. HPL. 345/47 dated 11th February, 1948.]

(See rule 8)

Command Certificate

Whereas an emergency has arisen, I.....District Magistrate of.....in exercise of the powers vested in me by section 10 of the Assam Home Guards Act, 1947 hereby all out the Home Guards of.....Area.

(Seal)

.

District Magistrate.....

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Translation